

Submission to the Senate Environment and Communications References Committee

Inquiry into Artificial Intelligence and Data Centres

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Dear Committee,

Thank you for the opportunity to lodge a submission to the *Inquiry into Artificial Intelligence and Data Centres*, and for the additional time given to lodge.

Australia's digital infrastructure is foundational to its national sovereignty. It is a strength of Australian democracy that an investment wave of this scale can be brought into the public realm for contestation and debate; such debate is itself part of the critical infrastructure of Australian democracy. Sovereignty should not be pursued at the expense of the democratic conditions for accountability and transparency that Australia as a nation helped to pioneer. .

The current debate has also revealed how little visibility communities have into which level of government makes the decisions that shape their lives, a gap that opaque approval pathways widen. Many of the critical decisions shaping data centre infrastructure are being made through fast-track planning pathways that exempt or truncate community consultation and public exhibition, without transparency around environmental impacts. This heightens environmental, social and economic risks, and investors are already expressing concern that data centres are losing their social licence to operate (Wiggins 2026).

Core to our submission is therefore **the need for greater transparency in the planning and approval of data centres across all levels of government, and ongoing monitoring against approved resource impacts** to ensure they do not contravene existing sovereign commitments.

It is not acceptable, in an era of information abundance, that such long-lived and resource-intensive assets can be approved without public exhibition. Much of this lies with state planning regimes, but the Commonwealth should use its powers to advance national standards and mandatory national reporting. **Investment in sovereign digital infrastructure should not undermine Australia's existing commitments**, including its Nationally Determined

Contribution under the Paris Agreement and the due diligence obligations recently affirmed by the International Court of Justice (International Court of Justice, 2025).

Nor should this investment be a missed opportunity. Benefit-sharing and precinct-scale innovation districts can strengthen Australia's skills and knowledge ecosystem and accelerate the transition away from the resource dependencies driving global heating. And in advancing Indigenous data sovereignty, consistent with the National AI Plan's commitments and the Framework for Governance of Indigenous Data, Australia can lead the world in recognising the knowledge systems that have nurtured people on this continent for millennia.

Thank you for taking the time to read our submission. We thank the Committee for its consideration of the recommendations of this submission and welcome the opportunity to appear.

To discuss or clarify any aspect of this submission, please contact Sarah Barns, sarah.barns2@rmit.edu.au

Summary of recommendations

Transparency and disclosure

1. **Mandatory disclosure at application stage.** Resource impacts of data centre developments to be mandated for data centres above 5MW. Applicants to state expected electrical load, expected annual water demand by source (potable, recycled, or other), and cooling technology. These disclosures should form part of the publicly exhibited application documents, not commercial-in-confidence annexures available only to agencies.
2. **Public exhibition stage should not be ignored.** Fast-track programs such as Victoria's Development Facilitation Program should not extinguish exhibition for facilities of this scale. A minimum public notice and comment window, allowing sufficient time for public engagement and consultation, should apply nationally. This requirement should be incorporated into the national data centre principles flagged in the National AI Plan consistent with the 'meaningful community consultation' expectation now embedded in the NSW Data Centre Policy Framework.
3. **Support for local government.** Referral packages to councils must include load data. Agency assessments of grid and water impacts should also be published alongside any approval outcome.

Monitoring and reporting

4. **A national public register of data centre applications and performance,** carrying the mandated fields above, with annual reporting of actual consumption against approved estimates on a mandatory NABERS-style basis, to ensure ongoing monitoring over time. This register could be modelled on existing schemes such as the National Greenhouse and Energy Reporting scheme and the NABERS disclosure regime, alongside adjacent amendments to state planning systems.
5. **Transparent reporting on energy sources.** Public renewable energy claims by data centre operators should distinguish contracted supply, certificate matching and offsets, consistent with ACCC guidance on environmental claims, and be verifiable against the register. Any claims of renewable supply should demonstrate additionality and be verifiable through REGO time and location matching, with facility registration data reported to AEMO complementing the public register at Recommendation 3.
6. **Mandatory e-waste and server lifecycle reporting.** Data centre operators should be required to report server stock, turnover rates and e-waste recycling outcomes annually through the public register proposed at Recommendation 3, so that Australia's exposure to AI-driven e-waste growth can be measured and managed before turnover volumes peak.
7. **Demand evidence of environmental impact.** Approvals should be conditional on demonstrably additional renewable supply to match demand, no reliance on new or extended fossil generation, and consistency with legislated Commonwealth and state emissions targets, assessed against cumulative demand.

Community benefit and compute access

8. **Benefit sharing agreements.** National data centre standards should include a benefit-sharing obligation for facilities above 5MW. Modelled on the per-megawatt community benefit contributions established for renewable energy zone generators in NSW, this could be calculated per megawatt of approved load, indexed, for the operating life of the facility. The obligation should attach to the land through conditions of consent rather than to the corporate applicant, and payments should be reported through the public register proposed at Recommendation 3.
9. **Compute access as condition of consent.** We support the Albanese Government's stated intention to convert Expectation 5 of the *Expectations of data centres and AI infrastructure developers* to a binding requirement. Compute-access obligations for Australian researchers, small businesses and public institutions should be assessable against a public register.

Sovereignty claims and Commonwealth agreements

10. **Commonwealth facilitation conditional on disclosure.** Where the Commonwealth enters memoranda of understanding or comparable arrangements with global AI companies, alignment with the Government's *Expectations of data centres and AI infrastructure developers* should be evidenced through mandatory disclosures, and the terms of any commitments made under such arrangements, including benefit-sharing and compute-access commitments, should be published in full.
11. **Define sovereign capability by layer.** Any claim of sovereign AI capability in a government to company agreement should specify which specific layer of the technology stack it refers to. Domestic hosting of physical infrastructure should not be claimed as equivalent to domestic control of AI capability. Appendix B sets out the dimensions of the 'infrastructural AI stack' for this purpose.
12. **Address gaps in the application of sovereignty to Australia's Indigenous data sovereignty layer .** Sovereign capability claims currently attach to compute, facilities and models, while Indigenous data sovereignty remains the only register of sovereignty in the stack with no binding instrument in any approval pathway. Commonwealth agreements with global AI companies, and the national data centre principles flagged in the National AI Plan, should give effect to the Framework for Governance of Indigenous Data (2024) and be consistent with the Maam nayri Wingara principles and the CARE principles for Indigenous data governance, including through data governance conditions in facilitation agreements and Commonwealth procurement.

National consistency

13. **A pause on approvals until nationally-consistent frameworks apply.** New data centre approvals above 5MW should be paused until the nationally consistent standards flagged in the National AI Plan, the National Electricity Rule changes to be considered by the Energy and Climate Change Ministerial Council in September 2026, and the disclosure and benefit-sharing requirements recommended in this submission are in force.
14. **Advance nationally-consistent definitions of land use.** The Commonwealth should advocate for nationally-consistent definitions of data centres as a distinct use class in state planning schemes, assessed by reference to megawatts of connected load rather

than floor area, and preferentially located within designated precincts that enable heat reuse, recycled water, grid coordination and research co-location, on the model of renewable energy zones.

1. About this submission

This submission has been prepared by researchers at the [Centre for Urban Research](#) at RMIT University.

It draws on a Data Centres Transparency Project (datacentres.civicinterplay.io), established by Sarah Barns in 2026. This utilises a ‘civic AI’¹ methodology to map and report on Australian data centre planning pathways according to publicly-available data on the infrastructural requirements of AI in Australia. As at August 2026, the Tracker covers 89 sites, of which 69 have been used to inform the analysis below. The Map and associated Tracker include the following information:

- Approximate location;
- Approval status and pathway (NSW State Significant Development, Development Victoria’s Development Facilitation Program, or local planning, for example);
- Reported energy requirements and reported source (where available);
- Reported water requirements relative to environmental water stress (where available);
- The presence of community contestation in relation to the data centre, as reported by media or through local planning documentation;
- Published information on available data centre owners and/or developers and relevant investors associated with the data centre development process, including by industry category and sovereignty status.

More information about Civic AI methods, evidence documents and a fact-checking protocols utilised in the Data Centre Tracker are published in the project’s data repository and at [Appendix A](#).

¹ Civic AI is an emerging field of AI policy and research, sometimes described as ‘AI Civics’ or ‘Participatory AI’. While a fast-emerging field with no singularly-accepted definition, it considers how AI tools can be used to support civic participation and engagement, including by enabling citizens to partner with AI tools to work with data at scale, leveraging “massive amounts of data contributed by the public, rapidly synthesize unstructured and structured content from various sensors, and thus match the speed and complexity of urban changes” (Sieber et al., 2025).

2. Response to term of reference A: Effectiveness of existing regulatory frameworks

2.1 Summary

As the Data Centre Tracker evidences, transparency around the approval of data centres in 2026 is significantly at risk. Among data centres approved by the Victorian Government under the Development Facilitation Program in 2026, there were zero public exhibition notices published. Lack of transparent reporting risks exacerbating negative community sentiment around data centre approvals, reducing their social licence to operate and setting an unacceptable standard for the approval of major infrastructure projects transforming Australian cities and communities.

Key Data on Data Centres

- Of the 69 sites in the analysis subset, 38 (55%) were approved via processes that did not include any public exhibition, whether by fast-track designation or under a state significant development pathway.
- Capacity figures are publicly available for only 30 of the 69 data centre approvals. In Victoria in 2026, 12 sites were approved with no public exhibition.
- In Victoria specifically, the tracker audits the public planning records of 13 approved or lodged data centre applications as of August 2026. There is no public disclosure of approved facilities' expected electricity or water demand, and only one approval notice reports on the cooling method used. In at least one case, NEXTDC's M4 facility at Fisherman's Bend, permit conditions were not published.
- The megawatt figures in public circulation for these facilities (162MW at Fishermans Bend, 400MW-plus at Laverton North, 354MW at Tullamarine) appear only in corporate press releases and government investment promotion material. This is unacceptable as a data standard for reporting on environmental impacts of data centres.
- Applications are being lodged by engineering consultants or by shelf companies. The 354MW Tullamarine campus was approved in the name of *EMKC3 Pty Ltd*. The owner, AirTrunk, became known only after approval, through an application to correct the planning permit.

This lack of transparency in public reporting on development approvals represents a significant risk to the integrity of the planning and approvals process. It also risks further undermining data centre operators' declining social licence to operate.

2.2 Disclosure expectations

It is noteworthy that the problematic aspects of the Victorian Government approvals processes are not present everywhere. For example, within NSW, all NSW State Significant Development (SSD) applications exhibit Environmental Impact Statements (EIS), ensuring data transparency on environmental impacts. For example:

- Goodman Group's Lane Cove West proposal discloses 510,009 m³ per year of drinking water for cooling;
- AirTrunk's Kemps Creek campus discloses approximately 22.4 ML per year and capacity above 1GW;

- CDC's Marsden Park facility discloses 504MW and its cooling water efficiency.

2.3 Arrangements between the Australian Government and global AI companies

Memoranda of understanding (MOU) signed under the National AI Plan have included commitments to align future Australian operations with the Government's *Expectations of data centres and AI infrastructure developers* (March 2026). These expectations are, however, non-binding and operate at the operator level, reducing the requirement for public disclosure by data centre operators. It also does not specify any minimum levels of performance required.

The Australian Government has raised digital sovereignty as a principle underpinning the National AI Plan. However, definitions of sovereign AI and sovereign capability in current agreements do not specify which layer of the AI technology stack is being secured, or how the value generated at each layer is distributed. Assistant Minister Andrew Charlton addressed this directly in the ANU Crawford School Public Policy Annual Lecture (August 2026). The Assistant Minister's own framing is that Australia is currently confined to around 20 per cent of the AI stack.

The Data Centre Tracker was established to map the layers of sovereignty operating in Australia's emerging 'infrastructural AI' stack. Of the sites where ultimate ownership can be established from the public record, approximately 49 per cent are Australian-owned and 33 per cent United States-owned. But ownership of the facility is ownership of what Charlton has described as a negligible layer. As of July 2026 there were 19 data centre projects valued at \$50.3 billion in the NSW State Significant Development pipeline alone (NSW Government, 2026), while the international evidence presented in section 3.8 shows ongoing operational employment per facility in the tens to low hundreds.

We therefore recommend that an infrastructural AI stack be adopted as the reference frame for any government agreement, planning assessment or sovereign capability claim concerning data centres. Appendix B summarises this approach. Its purpose for now is largely illustrative: demonstrating that the policy landscape for data centres is not only highly fragmented, but that this fragmentation threatens the goals of digital sovereignty and transparent infrastructure planning.

2.4 Benefit sharing: a live legislative window

Australia already has processes for sharing the benefits of large energy infrastructure with host communities. Under the access scheme framework of the *Electricity Infrastructure Investment Act 2020* (NSW), renewable energy zone generators pay access fees, a portion of which funds the Community and Employment Benefit Program in host regions (EnergyCo, n.d.). Per-megawatt community benefit rates are now established practice on the generation side: NSW council benefit frameworks and REZ project arrangements apply benchmark contributions of \$1,050 per megawatt per annum for wind and \$850 for solar, paid annually from commencement of construction (Dubbo Regional Council, 2024; Spark Renewables, n.d.).

The *Electricity Infrastructure Investment Amendment Bill 2026*, introduced to the NSW Legislative Assembly on 5 August 2026, extends this access scheme architecture to large load facilities with connections at or above 5MW, a category designed for data centres. The Bill replicates the access scheme machinery for the purpose of controlling grid access and allocating network upgrade costs so they are not passed to ordinary consumers. The Act as amended in 2025 expressly provides for the community purposes and employment purposes for which generation-side access scheme fees may be used. The 2026 Bill establishes access scheme

machinery for large loads with no equivalent provision. To date no community benefit contribution has been announced.

The NSW Data Centre Policy Framework has advanced a streamlined 75-day assessment pathway with performance requirements relevant to six principles, including that data centres impose no net cost on consumers and communities, fund additional water and energy supply, and enhance local community infrastructure and amenity (NSW Government, 2026).

A per-megawatt benefit obligation should be expanded to include data centres. This adapts the existing benefit sharing approach utilised as part of the Renewable Energy Zones access scheme framework. Unlike employment projections which can be systematically overstated and never re-tested, a per-megawatt contribution scales with the actual burden a facility places on the shared grid and is verifiable against a disclosure register. This obligation should attach to the land through the conditions of consent rather than to the corporate applicant, given the demonstrated use of special-purpose entities in the approval process (see Section 2.1).

2.5 A whole of government approach is needed

As other Submissions have noted, data centre development spans various policy domains that cut across multiple jurisdictions, spanning infrastructure and planning, climate change, environment, energy, water and skills. Policy fragmentation is a real danger as Australia's 'infrastructural AI' footprint continues to expand. It is worth noting instances where the Commonwealth has legislated disclosure obligations directly on corporations in adjacent territory: the *National Greenhouse and Energy Reporting Act 2007* (Cth) requires corporations above thresholds to report energy use and emissions, and the *Building Energy Efficiency Disclosure Act 2010* (Cth), which makes NABERS energy ratings mandatory at the point of sale or lease of commercial office space.

The register proposed at Recommendation 3 extends this established model to data centres, capturing water use, facilities below current NGER thresholds, and facility-level rather than corporate-level reporting. There are reporting obligations that exist within Commonwealth control, including conditions on foreign investment approval under the *Foreign Acquisitions and Takeovers Act 1975* (Cth). In addition, the Commonwealth's position as a major purchaser of cloud and compute services, including MOUs with AI companies, provide avenues for the enforcement of reporting and disclosure obligations.

3. Response to term of reference B: Impacts on communities, industries and the environment

3.1 Lack of data reporting on community impacts

We note the lack of data transparency on water and energy impacts of data centres approved in Victoria under its Development Facilitation Program. Lack of data transparency is a significant risk to the integrity of the public planning system in Victoria, and reduces data centres' social licence to operate.

For example, some data centres are advancing significant improvements in water cooling methods, however with zero reporting on this, communities are not able to determine how much water stress a given data centre is likely to add.

3.2 Data centre electricity demand and net zero

Data centre electricity demand is growing rapidly and is being accelerated by AI. The IEA (2025) estimates that a typical AI-focused data centre may consume electricity equivalent to 100,000 households, while the largest facilities under construction could consume up to twenty times more. Data centre electricity demand grew by 17 per cent globally in 2025, with AI-focused demand growing by 50 per cent, and total data centre energy consumption is projected to almost double between 2025 and 2030 (IEA, 2026).

According to the 2026 Electricity Statement of Opportunities (AEMO, 2026), in Australia, data centres currently consume approximately 3 per cent of national electricity. This is projected to rise to 13 per cent of Australian energy by 2036, demonstrating the significant level of additional energy required to support the data centre boom.

Australia's emissions reduction targets of 43 per cent below 2005 levels by 2030 and net zero by 2050 are legislated under the *Climate Change Act 2022* (Cth), with a further commitment to 62 to 70 per cent below 2005 levels by 2035 (DCCEEW, 2026). The rapid expansion of data centres must not undermine that pathway by adding substantial electricity demand and emissions during the transition. Data centres should not be approved unless they can demonstrate that their construction and operation will not undermine Australia's or the relevant state or territory's net-zero pathways.

The risks of data centre developments undermining Australia's emissions reduction targets have now increased with the Australian Government recently softening its stance that all AI data centres be powered entirely by renewable energy. The new nationally consistent standards for AI development will now allow some jurisdictions, including Queensland and the Northern Territory, to power data centres using fossil fuel generated electricity (Noroozinejad, 2026).

3.3 Categories of planning approval

Current AI compute racks draw in the order of 40 to 120 kW, against 5 to 10 kW for conventional server builds, and operate at high sustained utilisation rather than the intermittent load profile of traditional cloud hosting.

These are industrial electrical loads with a profile closer to a smelter than to a warehouse, being assessed under frameworks designed for warehouses. As a result, the industry's own unit of measure has shifted from square metres to megawatts.

Further compounding this issue is the fact that for many states in Australia, the planning schemes classify data centres as a warehouse or associated with industrial land uses. This is completely at odds with the scale of water and electricity use and undermines the ability of local and state governments to effectively plan for data centres (Planning Institute of Australia, 2026). Recommendation 13 addresses this.

3.4 Renewable energy claims

Most corporate claims reviewed via the Tracker are certificate matching or offsets rather than contracted renewable supply:

- Equinix's Australian operations were approximately 19 per cent renewable-covered at end-2024, against a global claim of approximately 96 per cent;
- Carbon neutral certification via offsets is routinely conflated with renewable electricity;
- Several operators' "100 per cent" commitments are in fact 2030 targets;

- Power purchase agreements (PPAs) may help finance new renewable generation, but a facility under a PPA generally remains connected to the shared grid and draws electricity generated in part from fossil fuels;
- Certificates and PPAs do not by themselves eliminate the emissions associated with grid consumption or establish that a facility is net zero;
- Consistent with accepted net zero principles, data centres should first minimise energy use and reduce direct and indirect emissions as far as possible, with only genuinely unavoidable residual emissions addressed through high-quality removals. Transparency on these points is essential to achieving a social licence to operate.

3.5 Water impacts

Two Victorian facilities demonstrate that low-impact design is achievable.

- AWS's Melton facility will run on recycled water from Greater Western Water's Melton plant from commencement, a Victorian first.
- CDC's Brooklyn facility uses a closed-loop design with near-zero operational water draw.

This information was sourced from the water corporation and from corporate sustainability material, and not disclosed through the approvals pathway.

3.6 E-waste and end-of-life

Data on e-waste recycling rates are limited for Australia, and are currently lacking for data centres at a national scale. Globally, it is estimated that only about 22 per cent of all e-waste is formally collected and recycled (Global E-waste Monitor, 2024), but it is currently unclear whether e-waste recycling from data centres is above or below this number. Recent peer-reviewed modelling estimates that AI server turnover alone could generate between 131 and 225 kilotonnes of e-waste annually by 2030, comparable to the total yearly e-waste of a country such as Denmark or Norway (de Vries-Gao, 2026). Notably, this estimate is a downward recalibration of earlier projections, and its author stresses that without greater transparency from data centre operators on server stock and turnover, the true scale of the waste stream cannot be reliably measured.

Data centres globally and in Australia can be expected to become significant generators of e-waste over the decade. As data centre operators generally do not disclose details of their server stock levels and turnover rates, there is very limited information on both data centre e-waste generation and the recycling rates of this e-waste. **Reporting requirements are needed to better capture server turnover rates, track e-waste recycling rates, and develop policies to support increased recycling rates.**

3.7 Community impact and social licence

Victorian government information on data centre investment claims the state is meeting the needs of businesses looking to invest in Victoria, in particular in relation to speed, scale, and social licence (Invest Victoria, 2026). Fast-tracked planning approvals for data centres, such as those currently in place in Victoria, demonstrate the lack of community consultation, resulting in a failure to meet the requirement for a social licence to operate.

Increasing community concerns about the social and environmental impacts of data centres, including constant cooling system noise, light pollution, and the detrimental economic impact of

living alongside a data centre, highlight the need for community consultation before permits are approved, as per Recommendation 2 (Taylor, 2026; Lucas & White, 2026).

Data centres are being planned, designed and built alongside existing residential communities without consideration of how being a ‘good neighbour’ requires being integrated into a community and also giving back in ways that benefit the local community (ARUP, 2026). At current rates of approvals, it is hard to see how community interests are being balanced against the needs of data centre operators and effective resource planning undertaken to ensure no increased costs flow on to communities.

3.8 Economic benefit claims

Data centres are promoted as attracting investment and unlocking new job opportunities. While building a data centre creates significant job opportunities for workers in the construction industry, this generates competition with other construction projects, including housing, and it is widely understood that these jobs are temporary.

International studies show that ongoing roles in an operational data centre consist of only tens or, at most, several hundred jobs (Bahar & Wright, 2026; Ngata et al., 2025; Clark, 2026). Transparent modelling is needed to outline the employment opportunities and economic benefit beyond the construction phase, to both the local area in which a data centre is built and to the economy more broadly.

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Statement on the use of AI for this Submission

AI tools were used in collating background data and information relevant to this Inquiry. The capabilities needed to use AI tools effectively and critically are core to the methodology of civic AI.

Appendix A: Civic AI methods for Data Centre Transparency

The Data Centres Transparency Tracker applies a ‘Civic AI’ methodology that explicitly adopts the use of AI tools to work with publicly-available data at scale. This methodology is an emerging practice of digital civics, and leverages “massive amounts of data contributed by the public, rapidly synthesizes unstructured and structured content from various sensors” with a view to “promoting citizen engagement and participation in planning and decision-making, including transparency of governance processes” (Sieber et al., 2025).

By adopting a Civic AI methodology, the Data Centres Tracker is developed with AI-inputs and therefore is benefitting from access to available digital compute infrastructure. This therefore reinforces the need for compute investment in Australian jurisdictions. With this investment should come data availability and transparency. A core intent of this methodology is to track the quality of information being shared via development approvals of data centres; monitoring over time the impacts they have on local communities and infrastructures; and how value and benefits are realised at different scales.

Key details of the project methodology, evidence documents and fact-checking protocols used to verify data are reported as part of publicly-available documentation (Barns, 2026) and as part of the project’s data repository.

Appendix B: Governing the ‘infrastructural AI stack’ in Australia

The table examines the ‘infrastructural AI stack’ forming in Australia and its relevant legislative and governing instruments.

A core concept underpinning this submission is that the AI stack – once confined to models and software - is increasingly infrastructural. The implication is that Australia’s policy settings shaping AI governance, and in particularly AI sovereignty, will require a more holistic assessment of how each ‘layer’ of the stack interrelates.

A more holistic understanding of how value is generated at each layer of the AI stack is needed to shape future public policy around digital sovereignty. This submission recommends greater attention towards how layers of land use, energy, water, compute, models and data sovereignty each *combine* to support conditions of democratic accountability and sovereignty, rather than isolating a single layer (such as location of compute) as a defining condition of AI sovereignty.

This work is presented as illustrative only.

Table 1: Governing the Infrastructural-AI Stack

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
1. Land and site	Rezoning and development consent under state planning legislation, for example the <i>Environmental Planning and Assessment Act 1979</i> (New South Wales) and the <i>Planning and Environment Act 1987</i> (Victoria)	State and local	Binding; assessed once at consent	○ Public exhibition, objection rights and merits review in some states; fast-track pathways exempt public notice in some jurisdictions
1. Land and site	State significant development and ministerial facilitation pathways, for example New South Wales State Significant Development (SSD) and the Victorian Development Facilitation Program	State	Binding; ministerial call-in	● Consolidates discretion in the minister and removes third-party appeal rights
1. Land and site	Foreign investment screening of land acquisitions under the <i>Foreign Acquisitions and Takeovers Act 1975</i> (Commonwealth), administered through the Foreign Investment Review Board, including land near defence premises	Commonwealth	Binding where triggered	● The Australian Government treats specific applications, individual no-objection notifications (NONS), and custom conditions as confidential taxpayer and commercial information between the applicant and the Treasury
1. Land and site	Native title and Aboriginal cultural heritage legislation	Commonwealth and State	Binding where triggered	● Registers public; agreements frequently confidential

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
2. Energy and water	Grid connection under the National Electricity Law and National Electricity Rules; large load connection processes of the Australian Energy Market Commission and the Australian Energy Market Operator	Commonwealth cooperative scheme	Binding; technical	• No community-facing stage; connection agreements commercial-in-confidence
2. Energy and water	Renewable energy zone access schemes under the <i>Electricity Infrastructure Investment Act 2020</i> (New South Wales). Per-megawatt community benefit contributions apply to renewable energy zone generation.	New South Wales	Binding for generation; silent on load	○ Access fees and community benefit contributions published; the scheme applies to generation only
2. Energy and water	Environmental licensing by state environment protection authorities, for example under the <i>Protection of the Environment Operations Act 1997</i> (New South Wales), the <i>Environment Protection Act 2017</i> (Victoria), the <i>Environmental Protection Act 1994</i> (Queensland) and the <i>Environmental Protection Act 1986</i> (Western Australia)	State	Binding; ongoing	● Licences and enforcement actions appear on public registers; licence variation and compliance monitoring proceed between regulator and licensee
2. Energy and water	Example governing instrument/s: Water access entitlements and licensing under state water statutes, for example the <i>Water Management Act 2000</i> (New South Wales), the <i>Water Act 1989</i> (Victoria), the <i>Water Act 2000</i> (Queensland) and the <i>Rights in Water and Irrigation Act 1914</i> (Western Australia), within the <i>Water Act 2007</i>	State, within a Commonwealth basin framework	Binding; entitlements ongoing, allocations set periodically	● Entitlement registers and water sharing plans published; individual usage and trading data only partly public.

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
	(Commonwealth) framework for the Murray-Darling Basin.			
2. Energy and water	<i>Environment Protection and Biodiversity Conservation Act 1999</i> (Commonwealth) and the current environment law reform	Commonwealth	Large electricity loads and most non-basin water take are not listed matters	- The Commonwealth's principal open environmental assessment instrument mostly does not reach this asset class
2. Energy and water	<i>Expectations of data centres and artificial intelligence infrastructure developers</i> (March 2026), including sustainability expectations	Commonwealth	Non-binding	● Published, but compliance is unverifiable; no reporting mechanism
3. Physical facility	<i>Security of Critical Infrastructure Act 2018</i> (Commonwealth): data storage and processing sector; critical infrastructure risk management programs; systems of national significance; March 2026 consultation proposing expanded ministerial direction powers, including governance controls and voting exclusions on entities	Commonwealth (Home Affairs)	Binding; ongoing	● Risk management programs and designations confidential; reform consultation paper public
3. Physical facility	Foreign investment screening under the <i>Foreign Acquisitions and Takeovers Act 1975</i> (Commonwealth): data centre and cloud businesses classed as national security businesses with no monetary threshold; May 2026 reform package and updated Foreign Investment Policy	Commonwealth	Binding	● Conditions attach to the corporate applicant and are not published

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
3. Physical facility	Hosting Certification Framework of the Digital Transformation Agency, for government data workloads	Commonwealth	Binding for government contracts	● Certified provider list public; certification criteria and assessments not
3. Physical facility	State planning consent carried over from layer one	State	Binding; assessed once at consent, not revisited on change of ownership or use intensity	● Conditions attach to the applicant, not the land: ownership can churn through offshore vehicles without any reassessment
4. Computing hardware	No Australian instrument. United States export controls on advanced chips determine what compute Australia may host	United States	Foreign executive discretion	N/A
4. Computing hardware	<i>Defence Trade Controls Act 2012</i> (Commonwealth), as amended in 2024, for dual-use technology	Commonwealth	Binding for controlled exports and supply	● Permits confidential
4. Computing hardware	Upstream critical minerals arrangements (scandium, rare earths), including United States finance and first-offer offtake	Commonwealth and bilateral	Case by case	● Executive agreements with limited parliamentary visibility
5. Compute services and cloud platforms	Expectation five of the <i>Expectations of data centres and artificial intelligence infrastructure developers</i> : compute access on favourable terms for Australian start-ups, researchers and not-for-profits; local deployment of engineers and	Commonwealth	Non-binding (current)	● Published expectation; conversion into a requirement announced August 2026, legal mechanism not yet specified

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
	researchers; investment in Australian supply chains			
5. Compute services and cloud platforms	National Artificial Intelligence Plan (December 2025): sovereign compute focus, national data centre principles, Investor Front Door and Major Project Facilitation Agency, one billion dollars through the National Reconstruction Fund	Commonwealth	Policy and public finance	● Facilitation agreements with proponents are not public
5. Compute services and cloud platforms	Australian Public Service Artificial Intelligence Plan (November 2025) and Commonwealth procurement	Commonwealth	Binding within government	○ Plan published; contracts reported through AusTender
5. Compute services and cloud platforms	Competition and consumer law, including the digital platforms work of the Australian Competition and Consumer Commission	Commonwealth	Binding; after the fact	○ Public enforcement
6. Models, software and intellectual property	National Artificial Intelligence Plan (December 2025)	Commonwealth	Framework policy	● Plan published; no legislative instrument
6. Models, software and intellectual property	Australia's Artificial Intelligence Safety Institute	Commonwealth	Advisory only; no enforcement authority	● Publishes research; testing arrangements not disclosed

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
6. Models, software and intellectual property	National Artificial Intelligence Centre: Guidance for Artificial Intelligence Adoption and the six essential practices	Commonwealth	Voluntary	○ Published guidance
6. Models, software and intellectual property	<i>Copyright Act 1968</i> (Commonwealth): text and data mining exception ruled out (October 2025); Copyright and Artificial Intelligence Reference Group consulting on paid collective licensing, artificial intelligence outputs and a small claims forum; <i>Copyright Amendment (Orphan Works and Other Measures) Act 2026</i>	Commonwealth (Attorney-General's Department)	Binding baseline; licensing scheme unresolved	● Reference group feedback not yet published
6. Models, software and intellectual property	<i>Privacy Act 1988</i> (Commonwealth): statutory tort for serious invasions of privacy (from June 2025); automated decision-making transparency in privacy policies (from December 2026); second tranche of reform pending; guidance from the Office of the Australian Information Commissioner on artificial intelligence and personal information	Commonwealth	Binding	○ Obligations set in the Act; automated decision-making transparency requirements commence December 2026 through published privacy policies
6. Models, software and intellectual property	<i>Online Safety Act 2021</i> (Commonwealth) and registered industry codes	Commonwealth (eSafety Commissioner)	Binding for services	● Codes negotiated with industry, then registered publicly

Stack Layer	Example Governing Instrument/s	Relevant Jurisdiction	Legal force and timing	Public accountability / transparency
6. Models, software and intellectual property	Commonwealth's Framework for Governance of Indigenous Data (2024, developed under Closing the Gap Priority Reform Four), the Maiam nayri Wingara sovereignty principles, and the CARE principles for Indigenous data governance	Commonwealth	Voluntary	● Frameworks and principles published; no binding force in any data centre approval, facilitation or procurement pathway
Cross-cutting: skills and capability	National Artificial Intelligence Plan skills measures: artificial intelligence literacy programs, community training hubs, reskilling; expectations of worker and union consultation on artificial intelligence at work	Commonwealth	Policy and funding	○ Published policy and funded programs
Cross-cutting: skills and capability	Jobs and Skills Australia capacity study on generative artificial intelligence and the workforce	Commonwealth	Advisory	○ Published
Cross-cutting: skills and capability	National Skills Agreement; fee-free technical and further education; university research training; skilled migration settings for artificial intelligence talent	Commonwealth and state	Binding funding agreements	○ Public

Summary of instruments cited

Commonwealth Legislation

Copyright Act 1968

Copyright Amendment (Orphan Works and Other Measures) Act 2026

Defence Trade Controls Act 2012, as amended by the Defence Trade Controls Amendment Act 2024

Environment Protection and Biodiversity Conservation Act 1999

Foreign Acquisitions and Takeovers Act 1975 and Foreign Acquisitions and Takeovers Regulation 2015

Online Safety Act 2021

Water Act 2007

Water Act 2007 (Commonwealth) framework for the Murray-Darling Basin

Privacy Act 1988, as amended by the Privacy and Other Legislation Amendment Act 2024

Security of Critical Infrastructure Act 2018, with the Security of Critical Infrastructure (Critical infrastructure risk management program) Rules

State Government Legislation (not comprehensive)

Electricity Infrastructure Investment Act 2020 (New South Wales)

National Electricity Law and National Electricity Rules (schedule to the National Electricity (South Australia) Act 1996, adopted in participating jurisdictions)

Environmental Planning and Assessment Act 1979 (New South Wales)

Environment Protection Act 2017 (Victoria)

Environmental Protection Act 1986 (Western Australia)

Environmental Protection Act 1994 (Queensland)

Planning and Environment Act 1987 (Victoria)

Protection of the Environment Operations Act 1997 (New South Wales)

Rights in Water and Irrigation Act 1914 (Western Australia)

Water Act 1989 (Victoria)

Water Act 2000 (Queensland)

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National Artificial Intelligence Plan, December 2025. Australian Government 2025, <https://www.industry.gov.au/publications/national-ai-plan>

Expectations of data centres and artificial intelligence infrastructure developers. Department of Industry, Science and Resources. (2026, March)

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National Artificial Intelligence Centre (2025) Guidance for AI Adoption. Department of Industry, Science and Resources
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